STANDARD OPERATING PROCEDURE			A-7100
	SARPY COUNTY SHERIFF'S OFFICE PAPILLION * NEBRASKA **GREG LONDON** **SHERIFF**	DATE ISSUED 12/04/06	DATE REVISED **09/05/25**	DATE REVIEWED 02/02/25
		APPROVED: *GREG LONDON*		

CHAPTER TITLE	RESOURCES
ADMINISTRATION	Nebraska Statute 69-1302-1310 Nebraska Statute 29-820(b) Nebraska Statue 28-820(1) (e) CALEA 83.2.1, 83.3.2, 84.1.1, 84.1.2, 84.1.6
SUBJECT EVIDENCE AND PROPERTY	CROSS REFERENCE G-6220 TASER

I. Purpose:

The purpose of this policy is to establish the guidelines for the processing of evidence and property taken by the Sarpy County Sheriff's Office.

II. Policy:

The Sarpy County Sheriff's Office shall ensure that all property taken into its custody is properly received, securely stored, carefully accounted for, and disposed of in accordance with the law. The safeguarding of personal property and evidence and the chain of possession shall be of prime importance to the Sheriff's Office. Employees shall secure all property and evidence prior to the end of their tour of duty. Employees shall not convert any property recovered as part of their official duties to their private use.

III. Definitions:

A. EVIDENCE: Property which is taken into custody and is related to a crime or which may implicate or exonerate a person from a criminal charge.

B. FOUND PROPERTY: Non-evidentiary property which, after being taken into custody by the Sheriff's Office, is determined to be lost or abandoned and is not known or suspected to be connected with any criminal offense. Found property does not generally include intentionally discarded items and deputies should not take custody of discarded items.

C. PROPERTY HELD FOR SAFEKEEPING: Non-evidentiary property which is taken into custody for temporary protection. Safekeeping items are held to determine legal ownership or for public safety. This may include property that the owner cannot take custody of due to injury or incapacitation.

IV. Procedure:

A. Evidence and Property-Deputy Responsibilities: Deputies taking any property into their possession in connection with their official duties, either personal property of a suspect, arrestee, inmate, or as evidence, or found property or for any reason shall adhere to the following procedures:

1. The deputy taking custody of the property or evidence shall complete an Evidence/Property report in BEAST.

a) In the event BEAST is inoperable, the deputy shall complete a handwritten Evidence Form and Tag, located in the Evidence Processing Room.

2. The deputy shall properly tag/mark the evidence or property (see Section C).

3. The deputy shall properly package or store the evidence or property (see Section D).

4. The deputy shall complete an original offense or arrest report with a report number whenever property or evidence is taken into custody. The report shall detail the circumstances by which the evidence or property came into the deputy's possession and shall describe each item obtained.

5. The deputy shall make a reasonable effort to identify and notify the owner or custodian of the property.

B. Evidence/Property Report Completion: An Evidence/Property report shall be completed in BEAST for all property taken into custody.

1. The deputy shall note on the Evidence/Property report if he or she wishes an item to be tested, this can be done in the Item Notes. The deputy should specifically note the item to be tested and request a specific test be performed. Tests will generally not be performed on marijuana less than one ounce or paraphernalia with marijuana residue unless requested by the County Attorney's Office.

a) If item(s) are submitted for testing, the suspects name/DOB (if known) shall be added in Tab "(2) Names", then link the person(s) using the "Names Link" button located in Tab "(3) Items" in BEAST.

2. Chain of possession shall begin with the location where the property was retained by the deputy, under Collection Information located in Tab "(3) Items".

3. The deputy shall properly log all evidence and property in BEAST before the end of his or her shift.

C. **Tagging and Marking of Evidence and Property:** All property and evidence shall be tagged/barcoded.

1. Evidence should be tagged in a manner that does not damage the item or interfere with any required laboratory examination.

2. Improperly completed tags or reports shall be returned to the deputy's supervisor for correction.

D. **Packaging and Storage of Evidence and Property:** Property should be placed in a container whenever possible.

1. Plastic and paper bags are suggested for most evidence and property.

2. Items that are wet, damp or susceptible to mold or rust should be placed in a paper bag.

3. Evidence barcode tags shall not be used to seal evidence bags nor shall they be adhered to the evidence unless the tag will not damage the property.

4. Items requiring testing shall be packaged separately from all other items and be sealed with evidence tape. Properly initial/badge/date the seal on both sides of the sealed bag.

5. Property shall be placed in an Evidence/Property locker when possible, and the locker shall be secured.

6. Property that will not fit in a locker (e.g. bicycles, beer kegs, etc.) may be placed in the fenced area of the Sheriff's Office Garage. The deputy shall secure the item to a permanent part of the structure with a cable lock.

a) When the amount of narcotics or cash seized is too large to fit in an evidence locker, the deputy shall notify an on-duty evidence technician during normal business hours who shall take custody of the property and place it in a secure location.

b) If the narcotic or cash is seized after normal business hours, the deputy or his or her supervisor shall request an evidence technician respond to the Sheriff's Office to secure the evidence. If an evidence technician is not available, the Assistant Administration Commander shall determine who shall respond to secure the evidence.

7. The deputy shall contact an evidence technician when he or she takes custody of an item(s) that is too large to be placed in the fenced area of the Sheriff's Office Garage. Generally, such items shall be taken to the off-site storage facility.

8. Deputies shall place the property into the Evidence/Property lockers, or other approved secure storage area, prior to the end of his or her shift.

E. **Specific Evidence/Property Procedures:** All property and evidence shall be secured in such a manner as to prevent leakage and/or contamination.

1. Weapons: Weapons shall be secured in such a manner as to provide safety to deputies and evidence technicians.

a) Evidence boxes are available to secure knives and other sharp objects.

b) Weapons that may be dangerous to handle shall have an orange WARNING sticker placed on the packaging.

c) Firearms:

(1) All firearms shall be unloaded prior to being placed into an evidence locker. Whenever possible, firearms should have an open chamber. Sheriff's Office armorers may be consulted to ensure weapons are safe prior to being secured.

(a) Firearms and ammunition shall be entered as separate items into BEAST. Use the "Names Link" button located in Tab "(3) Items" in BEAST to associate the owners name to the firearm, if known.

(2) If a firearm is taken for safekeeping, the deputy shall provide the property owner or a designee with a completed copy of a Property Receipt, indicating what items were taken for safekeeping. The deputy shall advise the property owner that the property taken for safekeeping shall be held for a minimum of thirty (30) days. A background check shall be completed of any person receiving a firearm from the Evidence Unit.

(3) A copy of the Property Receipt shall be submitted with the firearm.

2. Cash: Deputies taking any currency into custody shall adhere to the following procedures:

a) The deputy and at least one other employee shall count the currency to verify the amount.

b) The currency shall be packaged and tagged separately from any other property. The package shall be sealed with evidence tape.

c) Both the deputy and other employee shall sign the evidence tape sealing the package and the front of the money envelope.

d) Upon receipt of the currency, the evidence technician and one other employee shall count the money. This shall be noted on the evidence money envelope. Both parties shall sign the evidence tape upon resealing.

3. Drugs and Drug Paraphernalia:

a) Deputies may utilize Presumptive Drug Test Kits/Field Test Kits to establish probable cause for drug-related arrests. Manufacturer recommendations for the proper use of the field test kit shall be followed. Nitrile gloves shall be worn during handling of suspected illegal/narcotic substances.

b) The deputy conducting the field testing shall be accompanied by a second deputy or law enforcement officer with Narcan available for deployment. Deputies should avoid field testing substances suspected of containing fentanyl.

c) Upon a positive field test result, items shall be taken for evidence to submit for additional testing. Items to be tested shall be packaged and tagged separately.

d) Field test kits shall not be submitted as evidence. Photos or body worn camera footage of a positive result shall be submitted instead.

e) Drugs shall be placed in a clear plastic bag, when possible, and then weighed. The weight shall be noted on the tag and Evidence/Property report.

(1) If the drug is suspected to be fentanyl or fentanyl related products, the evidence bag shall be placed inside a second bag.

(2) The plastic bag or container shall then be completely sealed with evidence tape.

(3) The evidence tape shall be initialed/badge and dated by the employee sealing the bag or container. The employee's initials and the date shall overlap the evidence tape onto the bag or container to ensure any attempt to remove the tape will be evident.

(4) If the evidence bag or container is suspected to be fentanyl, fentanyl related, or other drugs that could be harmful, the evidence bag or container shall have a HAZARD sticker attached to the outer evidence bag or container, noting that the contents contain suspected fentanyl.

4. Syringes and Needles: Deputies should consider the risk involved to personnel in the storage and handling of syringes and needles when deciding whether the items are needed as evidence. Generally, syringes shall not be taken into evidence as a common practice. A Supervisors approval shall be obtained before taking a syringe or needle as evidence. Most testing Labs no longer accepts syringes/needles for testing, without prior approval of the Lab Supervisor.

a) If a syringe taken as evidence contains liquid to be tested, the deputy shall:

(1) Obtain a glass vile from the cabinet in the Evidence Processing Room. The liquid remaining in the syringe can be injected into the vial; or the plunger of the syringe can be removed and a pipette cane be used to extract the liquid from the barrel and transferred to the vial. The vial shall then be secured by placing the cap on the vial.

(2) The vial containing the liquid to be tested shall then be placed into an evidence bag, sealed with evidence tape, signed and an evidence sticker shall be attached to the bag.

(3) Needles/syringes to be held as evidence shall be placed in a plastic evidence tube and shall then be enclosed in a clear plastic bag.

(4) An orange WARNING sticker shall be placed on the bag and the bag shall be sealed with evidence tape and signed.

(a) If a syringe is dry but has residue present, the syringe shall be submitted as described in (3) and (4).

(b) Syringes that have no evidentiary value shall be placed in a red Sharps Container to be destroyed.

5. Gasoline, fuels, and other volatile substances: Generally, volatile substances shall not be maintained by the Evidence/Property Unit.

a) Volatile substances that are evidence in misdemeanor cases should be photographed and disposed of safely.

b) In felony cases and other circumstances approved by a command officer, the following procedures shall be followed:

(1) An evidence technician shall be contacted and shall advise the location the substance is to be taken.

(2) The deputy shall complete an Evidence/Property report in BEAST and print a barcode tag.

(3) Empty containers may be retained as evidence, if needed.

6. Urine and Blood Kits: Urine and blood kits shall be secured in refrigerated evidence locker, lockers A-D. The kits shall be sealed with Evidence Tape and properly initial/badge/date the seal on both sides of the sealed item.

7. Sexual Assault kits should not contain blood, urine, tampons. Those items shall be packages separate and submitted into a refrigerated locker. The kits shall be sealed with Evidence Tape and properly initial/badge/date the seal on both sides of the sealed box.

8. Contaminated Evidence: Evidence that is contaminated with blood or other bodily fluids shall be handled with due caution. Contaminated items that do not have evidentiary value shall not be taken into custody.

a) All items contaminated with wet body fluids shall be placed in a paper bag.

b) An evidence technician shall be notified regarding wet items so they may be dried appropriately.

c) An orange WARNING sticker shall be placed on the bag and the bag shall be sealed with red evidence tape.

9. Digital Cruiser Video and Body Worn Cameras (BWC): Evidence that is contained on digital cruiser video or BWC shall be flagged by the deputy as soon as feasible on their in-car camera system using the appropriate event ID flag. The report number shall be added into the Secondary Event Tag for all video submitted into Evidence. In addition, an Evidence and Property report shall be completed for the video. Each deputy video shall be submitted separately in BEAST. If the same deputy has a cruiser video and

a BWC video, that may be one entry. The deputy shall update the quantity of videos submitted with the entry.

a) When an Evidence and Property report is received via BEAST by an Evidence Technician for a submitted digital video, the technician will locate the video on the current video management system and confirm that the audio and video recording is functioning.

b) The Evidence Technician shall confirm the report number is listed under Secondary Event Tag and the Property Number in the notes section. The Evidence Technician shall then initial this section confirming that all the information has been entered.

c) The Evidence Technician shall save the videos to a case using the report number and the suspect name/DOB, if available.

10. Recorded/Video Interviews: All recorded/video interviews using the Special Systems Room and Interview Rooms #1-4 shall be saved to the Interview Room Secure Server.

a) If the interview is saved to secure server, a BEAST entry shall be made noting the person who is being interviewed. The Chain of Custody shall begin with when the interview started and the location being the interview room # at SCSO. Submitted to evidence using the temp locker DISS-Digital Interview Rm Secure Server SCSO.

b) If the deputy conducting the interview copies the interview to DVD, the DVD shall be submitted into Evidence and enter BEAST. This shall not apply to IA interviews.

F. Photographing and Releasing Property:

1. In the following cases, evidence may be photographed and the photo tagged as evidence in lieu of the actual item.

a) Misdemeanor shoplifting.
b) Misdemeanor offenses involving liquor containers.
c) Misdemeanor cases involving fireworks.

2. All photographs shall be entered into BEAST and your report shall include:

a) A description of the property, including value;
b) The name of the owner(s) of the property;
c) The time, date, and location where the evidence was obtained;

d) The time and date the photograph was taken;
e) The name of the photographer.

3. In all other cases, including felony shoplifting, the actual property must be tagged and may not be photographed and released unless approved by the County Attorney's Office.

G. **Photo Processing:** Evidence technicians shall be responsible for processing photographs taken by Sheriff's Office employees. Employees shall adhere to the following guidelines for taking and processing photographs.

1. Prior to taking evidentiary photographs, the employee shall take a photo of the report number.

2. This policy applies only to photographs captured by Sheriff's Office employees and does not apply to cameras, digital storage media, film, video tape, or other images that have been obtained as a result of a search and seizure or provided to an employee by a citizen. Any item meeting these criteria shall be handled as evidence and processed appropriately.

3. Digital Photographs:

a) Prior to taking photographs, the employee should ensure the date and time are set properly on the camera.

b) Digital photographs shall be taken at the highest resolution available for the camera used.

c) Images should not be deleted. Images that were inadvertently taken or are of poor quality should be left intact on the storage media to preserve the continuity of the photographic session.

d) Employees may take photographs of more than one incident on a single digital media device. Employees shall ensure that each new set of photographs is preceded by a photograph of the appropriate report number.

e) Submitting Digital Photographs as Evidence:

(1) Memory cards containing digital photographs shall be placed into a photo envelope. An Evidence/Property form shall be completed in BEAST and barcode tag included in the photo envelope.

(2) The front portion of the photo envelope shall be completed and the envelope shall be placed in Evidence Locker # 001.

The chain of possession shall come from the deputy taking the photographs to Evidence Locker # 001.

(3) Photographs submitted by email shall be sent to sheriffevidence@sarpy.gov, not to a personal email address. An Evidence/Property report in BEAST shall be completed to include the number of photographs. When sending photos through email, photos shall be sent at a high resolution.

f) Evidence Technician Responsibilities:

(1) An evidence technician shall collect all digital media in Evidence Locker # 001/evidence email and download the images to the computer software Lynx, designated for this purpose.

(2) Each set of photographs, designated by a unique report number shall be stored in Lynx.

(3) The evidence technician shall then erase the digital media and return it to the employee.

H. **Evidence Requests:** Deputies in need of evidence for court shall submit a Photo/Evidence Submission Request at least twenty-four (24) hours prior to the time the evidence is needed. An email to sheriffevidence@sarpy.gov will also serve as a request.

1. The deputy checking out the evidence shall be given a blank copy of an Evidence Receipt form:

a) If the evidence is taken from the deputy for use in a court proceeding, the deputy shall complete the evidence receipt form, and return the form to the evidence technician.

b) The completed evidence receipt form along with the evidence checked out, but not retained by the courts shall be returned to the Sarpy County Sheriff's Property/Evidence room within twenty-four (24) hours of the time, said evidence is checked out.

I. **Photograph Requests:** Deputies in need of photographs for court shall submit a Photo/Evidence Submission Request form at least three (3) working days prior to the date the photographs are needed. An email to sheriffevidence@sarpy.gov will also serve as a request.

J. **Evidence Technician Responsibilities:** Evidence technicians shall be responsible for the handling, preservation, and storage of all evidence.

1. Upon receiving a piece of evidence, an evidence technician shall:

   a) Ensure all BEAST entries and barcode tags are completed properly.
   b) Ensure evidence is properly packaged and sealed.
   c) Continue the chain of possession.
   d) Complete an ATF Gun Trace on all firearms submitted.
   e) Have gun test fired for NIBIN if possible.
   f) Determine if laboratory testing or fingerprinting is required. If testing is required, the evidence technician shall follow the procedures outlines in section K of this policy.
   g) Properly store all property.

2. Evidence technicians shall also be responsible for the disposition and inventory of evidence and property (see below).

K. Submission of Evidence to a Forensic Laboratory

1. **Responsibility:** Evidence Technicians are responsible for submitting evidence to an accredited laboratory.

2. **Packing and transportation requirements:**

   a) All evidence will be packaged in accordance with established procedures provided in Section IV. D. and E. of this policy.
   b) Evidence must be preserved to retain its integrity and original condition to the maximum extent possible.
   c) Evidence will be driven directly to the lab by vehicle.

3. **Documentation requirement:** A lab submittal form will accompany all evidence submitted to the lab.

4. **Evidence receipts/Chain of Custody**

   a) Evidence Technicians will be provided a receipt for all evidence delivered to the specified forensic laboratory.
   b) When evidence is released from the laboratory, the Evidence Technician receiving custody of the evidence will sign and be provided a copy of a receipt.
   c) All lab submittal forms, receipts delivered to and received from the lab will be added to the case attachments in BEAST.

5. **Results of laboratory analysis:** The specified forensic laboratory will provide a written report of lab results for all lab requests. This written report of lab results will be sent to the Evidence Technician who will forward it to the appropriate deputy and the County Attorney. The written report will also

be entered into the appropriate records management system and added to the case attachments in BEAST.

L. Evidence Request Fulfilled by Evidence Technician

1. Requests by the County Attorney's Office shall be submitted via email to Evidence Technicians. Requests shall be completed within one week from the date the request email was received. If more time is needed, the Evidence Technician shall notify the Evidence Manager for the reason of the delay.

a) Digital Evidence shall be copied to DVD, CD, Flash Drive or External Hard Drive. In cases that contain less than 12 photos, these photos may be printed out if the quality of the printed photo represents what is on the digital photo. Example, injury photos may not print well. Printed photos may either be 5x7 or 8x10 size. Printed photos shall contain our Report Number and any County Attorney Case numbers.

b) If requested, copies of physical documents shall be made. If the documents are sealed, break the seal, and annotate on the evidence bag the reason for breaking the seal with an initial, badge number and date.

c) Do not break the seal on any items which may contain contaminants, biohazards, possible DNA, or fingerprints, without prior approval by a supervisor.

d) Copies of photographs, videos or documents containing sensitive information (i.e. Child Porn, Project Harmony), shall not be copied.

e) If requested, photographs can be taken of physical items as long as it is documented. See (b) and (c).

f) Upon completion, the evidence requests and reply emails shall be scanned into BEAST under "Case Images"

2. Requests by the Sarpy County Sheriff Records Unit shall submit a request for copies of evidence through email. Possible records requests may be made by insurance companies, private attorneys, etc.

a) Approvals for releasing the copies of evidence shall be completed by the Records Unit prior to completion of evidence requests.

b) Copies of evidence are usually completed by coping evidence to DVD's.

c) Requests and emails shall be scanned into BEAST under "Case Images".

3. Requests by other Law Enforcement Agencies for copies of evidence requires approval by the Evidence Manager or Investigation Personnel. A notation shall be but into BEAST regarding any evidence copied if there is no email request.

M. **Disposition of Property:** Destruction/Dispose means to destroy, release, recycle, or auction. Property in the custody of the Sheriff's Office shall be disposed of in accordance with applicable laws and court orders. Property, with an owner, no longer needed as evidence or for investigative purposes and is legal to have, will be returned to the owner. Discretion should be used in returning items involving deaths, spoiled items and items of insignificant value.

1. **Signature Rule.** Three (3) signatures, one being a supervisor, are required prior to destruction.

2. **Releasing Property.** When property is to be released, an evidence technician shall contact the owner of the property.

a) The owner, if known, shall be advised by phone that the property must be picked up within ten (10) business days. Contact with owner, date and time shall be noted on the Property Evidence Form.

b) If the owner cannot be contacted by phone or fails to retrieve the property within ten (10) business days, a registered letter shall be sent to the owner. The letter shall describe the items to be released and notify the owner that they have thirty (30) days from the date the letter was sent to retrieve the property.

c) If the property is not claimed within thirty (30) days, the property shall be considered unclaimed may be disposed of after that date.

d) Any unclaimed property shall be disposed of after one hundred and eighty (180) days from the date the case is closed and items may be released.

3. **General Evidence.** Items other than Weapons, Drugs and Money, (General Evidence) shall be destroyed in such a manner that makes the items unusable. If item is of value and has no owner, follow procedure for auctions.

4. **<u>Disposition of Property Request Form</u>** shall be completed prior to disposing of evidence that are felonies, death investigations and certain

misdemeanors, as determined by the Administration Division Commander or his/her designee.

5. **Unclaimed Money.** After 180 days of the money coming into the evidence unit and no pending case.

   a) Claimed money that cannot be picked up at the Sarpy County Sheriff's Office shall be sent to the legal owner via cashier's check and registered mail. A cashier's check may be obtained at a location authorized by the Division Commander.

   b) If after 180 days, the money remains unclaimed, the Evidence Unit will remit the money to the Nebraska State Treasurer's Office (Nebraska Statute 69-1302 thru 69-1310) annually the month of October.

6. **Gambling/Lotteries Money.** Money used in unlawful gambling, lotteries or money used or intended to be used to facilitate a violation shall be forfeited and disposed of as required by (Nebraska Statute 29-820(b)); sent to the State Treasurer.

7. **Found Property** will be held for 180 days (State Statue 69-1330-69-1331) before destruction. Destruction will be accomplished by the items being auctioned or destroyed if item has no monetary value. If owner is identified, reasonable effort is made to contact owner to include a certified letter mailed.

8. **Auction of Unclaimed Property.** Unclaimed property (except Guns, Drugs or money) legal to sell and of monetary value, will be sold at auction either at the Sarpy County Impound Lot or an on-line auction.

9. **Found/Unclaimed Property** of no monetary value shall be destroyed in such a manner rendering it unusable.

10. **Narcotics shall be destroyed when no longer needed as evidence.**

    a) The narcotics packaging shall be weighed and examined for any signs of tampering prior to destruction. Two people will be present during the destruction. Any unexplainable discrepancies shall result in a report being generated.

    b) A Drug Burn Inventory Form will be filled out for all drugs being incinerated. The RN#, Item Number with brief description to include weight of the item and signatures of Evidence Techs and Supervisor that examined the package.

    c) All drugs to be incinerated will be checked against the Drug Burn Inventory Form. Drugs will be put into a paper sack, seal with two

persons, one being an Evidence Tech. The sack is labeled to correspond with the page number of the Drug Burn Inventory Form of what is in the sack.

d) At the time of burn, a supervisor will randomly choose sacks to open and inventory the items in there to be burned.

11. Narcotics Used for K-9 Training.

a) Procedure:

(1) Narcotics which are no longer needed as evidence, may be designated for K-9 training.

(2) Prior to checking out narcotics for training, the deputy and Evidence Tech will verify the contents of each container being checked out.

(3) The K-9 Unit Narcotics Training Chain of Custody form shall be completed and signed by the deputy and Evidence Tech upon checkout.

(4) When returning the controlled substance, the deputy and Evidence Tech shall verify the contents in each container.

(5) The K-9 Unit Narcotics Training Chain of Custody form shall be completed and signed by the deputy and Evidence Tech upon return of the narcotics.

b) Security:

(1) Training narcotics shall be stored on the locked evidence shelving within the secure evidence room.

(2) The deputy checking out the narcotics shall be responsible for the security of the items while in their possession.

(3) All training narcotics shall be inventoried every six months. The inventory shall be documented on the Training Narcotics Log.

12. Weapons

a) Weapons no longer needed for evidence and used in the commission of a crime will be destroyed, unless circumstances below dictate a different disposition (State Statue 29-820(1) (e)).

b) Weapons held by the Sarpy County Sheriff's Office meeting any of the following criteria shall be returned to owner:

(1) Voluntarily surrendered
(2) Held for safe keeping
(3) Not defaced or altered in any manner that violates state or federal statute
(4) May have a lawful use
(5) May be lawfully possessed
(6) Are not subject to NRS 29-440, Domestic Assault NRS 29.820.(1)(f)

c) If disposition from the County Attorney's Office states the weapon is to be destroyed, the weapon shall be held for sixty (60) days prior to being destroyed. The owner does not need to be notified of disposition of weapon. If the owner calls within (60) days and wants the weapon returned, they shall be referred to the County Attorney's Office to obtain a court order for its return. The owner shall be informed that he/she has thirty (30) days in which to obtain a court order. After thirty (30) days, if a court order has not been obtained by the owner, the weapon shall be destroyed.

d) All Weapons shall be destroyed in such a manner to render them inoperable and incapable of repair.

e) Weapons used in a suicide may be returned to the family of the deceased. See section on Releasing Firearms (Sec 12). The Investigator assigned to the case will also have to sign for release of the weapon. The family may also request that the gun be destroyed. Weapons shall be held for a minimum sixty (60) days prior to being destroyed or released.

f) The presence of a valid protection order against the owner prohibits the release of a weapon.

g) All weapons will be checked through NCIC and ATF before destruction.

h) Where feasible, all firearms will be test fired and checked through the National Integrated Ballistic Information Network (NIBIN).

i) The Weapon Destruction Log shall include the RN#, description of the weapon, serial number, offense, NCIS check date, ATF check

date, date weapon was dismantled/disposed of and by whom. After completion, the Weapon Destruction Log shall be forwarded for approval to the Administration Division Commander or his or her designee.

j) The Division Commander/designee will review and approve the Weapon Destruction Log. If a weapon is going to be considered for Law Enforcement Use, the log will be annotated as such. The weapon will be kept separate on a specific shelf in the Evidence Room and labeled to identify it. A request will be made through the County Attorney's Office requesting a court order for the weapon to be deemed law enforcement use only. Only after a court order is obtained, will the weapon be signed over to the Firearms Unit.

k) The weapon will be inventoried with an inventory tag by an Inventory Tracking Program. An inventory of all Law Enforcement weapons per court order will be kept by the Evidence Property Unit and shared with the Firearms Unit. It will be the responsibility of the Firearms Unit to verify that list. At no time will the weapon be for personal use and shall remain property of the Sheriff's Office. If the firearm is no longer needed by the Sheriff's Office, the weapon and all remaining parts will be returned to the Property and Evidence Unit, taken off of the inventory list and destroyed per policy.

l) Weapons to be destroyed: The Evidence Tag on the weapon will be stamped "Destroy". A firearm instructor may be notified to help with dismantling of the firearm. All dismantling will be done in the Bulk Evidence Room.

m) All parts including parts displaying a serial number or identifiable marks will be destroyed rendering them inoperable and incapable of repair. There will be at least two people present at the final destruction of the firearms and those present will sign the Weapons Destruction Log.

13. Releasing Firearms

a) A Property Return Request form is required when requesting a weapon from the Property and Evidence Unit. This form shall be filled out by the owner requesting the weapon or by an Evidence Technician by phone. The owner's signature and government issued ID shall be obtained prior to the weapon being released.

b) A Firearms Release Checklist form shall be completed by an Evidence Technician after receiving or completing a Property Return Request form.

c) Final release approval will be made by a Property and Evidence Unit Supervisor, Administration Commander or designee.

d) The legal owner of the weapon shall make an appointment with the Property and Evidence Unit prior to the release of the weapon. The weapon's owner shall present a government issued form of photo identification to the releasing agent prior to the actual release. Release of ammunition will be determined on a case-by-case basis by the Administration Division Commander or his or her designee.

e) If ammunition is being released, a Release of Ammunition Form will be signed stated he has 30 days to come back to pick up the ammunition. Ammunition will not be released the same day at the weapon.

N. Access to any Sheriff's Office Evidence or Property storage areas is limited to personnel assigned to the Evidence and Property Unit. Other Sheriff's Office personnel having a valid reason to enter may only do so with the permission of, and if accompanied by approved Evidence Personnel. Any person not assigned to the Evidence and Property Unit must sign the Evidence Room Access Log prior to entering and then time noted when exiting any of the Sarpy County Sheriff's Office evidence storage areas.

O. Any person entering any of the Sarpy County Sheriff's Office Evidence or Property storage areas, excluding the LEC property storage area and Sheriff's Office garage storage areas, may wear a particulate respirator with a NIOSH rating of N95 or higher. These particulate respirators shall be available at the entrances to all Evidence and Property Storage areas.

P. **Inspection and Inventory of Evidence and Property:** To ensure accountability and security in the evidentiary function, the following procedures shall be followed.

1. Property/evidence storage areas shall be maintained in an orderly manner.

2. During the month of January in every even numbered year, the Evidence/Property Unit shall conduct a comprehensive inventory of all property held by the Sheriff's Office.

3. An annual audit of property and evidence, in compliance with CALEA Appendix K, shall be conducted by a person not routinely or directly connected with control of property and evidence as directed by the

Sheriff or designee. The audit shall be documented on the Property and Evidence Annual Audit Form.

4. An inspection to determine adherence to procedures used for the control of property and evidence is conducted semi-annually by the person responsible for the property and evidence control function or his/her designee. The inspection shall be documented on the Property and Evidence Storage Inspection Form.

5. At least once a year, an unannounced inspection of property and evidence storage areas shall be conducted, as directed by the Sheriff. The inspection shall be documented on the Property and Evidence Storage Inspection Form.

6. An audit of property and evidence, in compliance with CALEA Appendix I, occurs whenever the property and evidence custodian is assigned to and/or transferred from the position and is conducted jointly by the newly designated property and evidence custodian and a designee of the Sheriff to ensure that records are correct and properly annotated.